

GHANA ARBITRATION AND COMMERCIAL LAW REVIEW

Effective Mediation in Arbitration: Role of the
Mediator under the Accra Arbitration Rules



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Effective Mediation in Arbitration: The Role of the Mediator under the Accra Arbitration Rules

Mediation has become an increasingly important component of modern dispute resolution. While arbitration provides a binding adjudicative outcome, mediation offers parties the opportunity to resolve their disputes amicably, preserve commercial relationships, and reduce the time and cost associated with formal proceedings.

Contemporary dispute resolution systems increasingly integrate mediation into arbitral frameworks. The Accra Arbitration Rules reflect this modern approach by recognising the value of settlement and permitting tribunals to facilitate discussions aimed at amicable resolution where appropriate.

Mediation therefore complements arbitration by providing parties with a flexible pathway toward settlement before a final award becomes necessary.

1. Independence and Impartiality

Under the Accra Arbitration Rules, arbitration proceedings are designed to remain efficient while preserving opportunities for settlement.

At appropriate stages of the proceedings, the tribunal may encourage the parties to explore amicable resolution. This reflects a widely accepted principle in international arbitration: disputes should, where possible, be resolved through agreement rather than adjudication.

Mediation may take place:



Before the commencement of arbitration



During the arbitration proceedings



After partial determination of issues by the tribunal

The integration of mediation within arbitration promotes efficiency while preserving the authority of the arbitral process.



2. Neutrality and Independence of the Mediator

A mediator operating within an arbitration framework must maintain strict neutrality.

Under the Accra Arbitration Rules, the same principles that govern arbitrators independence, impartiality, and integrity apply to mediators who assist the parties in settlement discussions.

The mediator must therefore:



Avoid conflicts of interest



Treat parties equally



Refrain from imposing any decision upon the parties

Unlike an arbitrator, the mediator does not determine rights or liabilities. The mediator's role is to facilitate dialogue and assist parties in reaching voluntary agreement.



3. Structure of the Mediation Process

Where mediation is undertaken within proceedings governed by the Accra Arbitration Rules, the process generally follows a structured sequence:

1. Pre-Mediation Preparation

The mediator reviews the dispute background and consults with the parties regarding mediation procedures.

2. Opening Session

Parties present their perspectives on the dispute and identify the key issues requiring resolution.

3. Private Caucuses

The mediator meets privately with each party to understand their concerns, interests, and potential settlement options.

4. Negotiation and Option Development

The mediator assists the parties in exploring solutions that address their respective interests.

5. Settlement Agreement

If consensus is reached, the agreement may be recorded and incorporated into a consent award where appropriate.



4. Encouraging Settlement during Arbitration

The Accra Arbitration Rules recognise that settlement is often the most efficient resolution of a dispute.

Accordingly, the tribunal may:



Encourage parties to engage in mediation



Suspend proceedings temporarily to allow negotiation



Facilitate settlement discussions where the parties consent

This approach aligns with international best practice in arbitration institutions worldwide, where mediation is increasingly integrated into arbitral procedures.



5. Confidentiality of Mediation Proceedings

Confidentiality is essential to successful mediation.

Under the Accra Arbitration Rules, mediation discussions conducted within the arbitration process remain confidential and cannot ordinarily be relied upon as evidence in subsequent proceedings.

This protection enables parties to negotiate freely without fear that concessions or settlement proposals will later be used against them.



6. Conversion of Settlement into a Consent Award

Where mediation leads to agreement, the settlement may be formalised within the arbitration proceedings.

Under the Accra Arbitration Rules, the tribunal may record the settlement as a consent award, thereby giving the agreement the same enforceability as a final arbitral award.

This mechanism offers parties an important advantage: a negotiated settlement that retains international enforceability



7. Skills and Qualities of the Effective Mediator

Effective mediation requires a combination of technical competence and interpersonal skill.

A successful mediator operating within the framework of the Accra Arbitration Rules should possess:



Strong listening and communication skills



The ability to manage conflict and emotions



Understanding of negotiation dynamics



Knowledge of the legal and commercial context of the dispute

These qualities enable the mediator to guide parties toward constructive dialogue and mutually beneficial outcomes.



8. The Strategic Value of Mediation in Arbitration

Mediation provides several advantages within arbitration proceedings:

1. Reduction of legal costs
2. Faster resolution of disputes
3. Preservation of business relationships
4. Flexibility in crafting settlement terms

Because mediation focuses on interests rather than strict legal positions, it can produce solutions that courts or arbitral tribunals cannot impose.



Conclusion

Mediation plays an increasingly vital role within modern arbitration systems. The Accra Arbitration Rules recognise this reality by permitting and encouraging settlement discussions within the arbitral process.

When conducted effectively, mediation complements arbitration by offering parties an opportunity to resolve disputes amicably while preserving the enforceability and procedural integrity of the arbitration framework.

For practitioners and institutions seeking efficient dispute resolution, the integration of mediation within arbitration represents one of the most promising developments in contemporary international dispute resolution.



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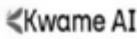
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